

March 15, 2025

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From: SambaNova Systems, Inc.
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Re: AI Action Plan

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SambaNova Systems, Inc., a leading developer of next generation AI hardware and software, appreciates the White House taking a leadership role requesting public comment on AI policy. AI is a transformative technology that is critical to economic prosperity, global competitiveness, and national security. At the same time, we are only at the early stages of this technology, and so it is critical to ensure that the policies we develop do not stifle innovation or small business in America. We would like to highlight a few areas that should be considered when contemplating our Nation's AI policies. These relate to open-source models, export controls, and providing for an innovative, competitive and level playing field for startup companies.

SambaNova Background

SambaNova is an American company founded in 2017 and maintains corporate offices in Palo Alto, California and Austin, Texas. At the core of our technologies is the Reconfigurable Dataflow Unit (RDU), a computer chip developed specifically for AI workloads. Our systems power AI for companies, governments and research institutions around the world and are state-of-the-art for capability, speed, and efficiency, helping our customers deploy AI at scale. SambaNova's technologies are deployed within

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multiple U.S. National Labs, including Argonne and Lawrence Livermore, among numerous others, and companies around the world depend on our systems to power their AI applications. As a young and innovative startup, SambaNova competes in an industry dominated by much larger and more established multinational companies. In the face of these challenges, SambaNova nevertheless continues to invent new technologies and advance the field, making America the global leader in AI.

Open-Source AI

The open-source community has been a hallmark of the U.S. technology industry, enabling rapid collaboration and innovation, while, by its nature, ensuring transparency and trust. Indeed, the most popular models we know today are rooted in open-source and continue to spur rapid innovation and advancement in model safety. Open-source models allow companies to quickly and securely deploy AI within their businesses and give them access and choice to the models and systems that work best for them. This democratization of AI ensures continued innovation, new business/industry growth, and our Nation's competitiveness in the global economy. Access to open-source development is critical to rapidly enhancing and developing AI and continuing U.S. leadership in this industry. As such, our AI policies should encourage open-source development in AI and be cautious of any regulations that slow the pace of innovation and constrain AI models to only the hands of a few.

National Security & Export Controls

We understand the importance of national security and the need to carefully consider the potential implications of advanced technologies. We also recognize the need for export controls against our adversaries and fully support these measures. More recent restrictions on AI chips, however, have been heavy handed in restricting access or blocking/slowing markets and applications where there are no national security concerns. Even with a licensing process that “presumes approval,” there have been unreasonable delays in issuing export licenses. These delays and extra burdens harm U.S. businesses

(especially small businesses) and can bring AI advances to a halt, while our adversaries gain ground by developing workarounds. Any new AI policies should focus on more targeted export controls to address specific root problems and bad actors, and not be so broad-sweeping as to chill innovation and economic activity, especially at this early stage of AI.

The AI Diffusion Rules did provide for a Low Processing Performance (LPP) exception to export licenses, which we are grateful for and has helped to mitigate some of the delays and burdens of obtaining export licenses. We strongly recommend the Administration to *maintain* such an exception, however, we expect its technical limits (as well as other requirements of AI Diffusion) will be problematic in the future. For situations where exceptions such as LPP do not apply and export licenses are required, we recommend policies that expedite the licensing review process and set forth strict timelines for agency review.

In general, the AI Diffusion rules fortify monopolies and market incumbents by constraining supply and artificially limiting demand, thereby not letting free market forces take effect. This generally results in less room for new technologies to flourish because customers, constrained by the rule's limits, are less willing to explore new technologies and expand their supply chains. The downstream effects of these restrictions are less global capital infusion for U.S. leading technologies, less competition, and ultimately a slowing of U.S. innovation and advancements in AI. We recommend that the Administration work with industry and small business to strike the right balance between national security and U.S. competitiveness in the global marketplace.

Small Business

U.S. AI startups, the most innovative in the field, stand to be the most impacted by any new policy. As dynamic as the AI industry has been in just the past few years, it is still very early in the technology curve, and any regulation that hinders U.S. innovation in this area

must be carefully considered. To maintain our Nation's leadership in this critical technology, the U.S. should focus on ensuring companies like SambaNova continue to succeed, grow and innovate so that the U.S. continues to lead in advancing the global economy. A level playing field for all market participants is imperative to making sure the U.S. maintains its competitive edge in an incredibly fast-moving industry. We urge the Administration to carefully review and consider policy impacts on small businesses, not only to mitigate such impacts, but to also actively encourage and support the growth of new technologies.

Conclusion

In summary, U.S. AI policy should focus on driving technological advancement and ensuring that its most innovative companies continue to grow and succeed. This is a time for U.S. technology and AI's economic benefits to improve, flourish and expand; and not a time to consolidate, isolate and lose ground to other nations. By prioritizing open-source collaboration, streamlining export processes, and actively supporting startups, the U.S. can out-innovate adversaries while safeguarding its interests.

We appreciate the opportunity to provide our thoughts and look forward to working with the Administration to ensure America remains at the forefront of AI technology.

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